

9. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION

*HEARING ON MOTION IN RE: SEAL

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

The hearing is ordered **OFF-CALENDAR**, as this motion to seal was granted by stipulation of the parties and the Court's Order signed July 23, 2026.

10. 9:00 AM CASE NUMBER: C25-00070

CASE NAME: GARO KEADJIAN VS. ALICA PURCELL

HEARING ON SUMMARY MOTION MSJ

FILED BY: PRZYLUSKA, GINA

TENTATIVE RULING:

WITHDRAWN by Notice of Withdrawal filed July 21, 2026.

11. 9:00 AM CASE NUMBER: C25-02482

CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA

*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL MOTION FILED

FILED BY:

TENTATIVE RULING:

On November 12, 2025, defendant Robert Jacobsen ("Defendant Jacobsen") filed a motion order disqualifying Geoffrey Wm. Steele ("Mr. Steele") and the Steele Law Group, Inc. (collectively, "Plaintiffs' Counsel") from serving as counsel for plaintiffs herein (the "Motion to Disqualify Counsel"). The Motion to Disqualify Counsel was set for hearing on June 8, 2026 pursuant to the Court's Order issued January 29, 2026.

The matter was called for hearing on June 8, 2026. See Minute Order dated June 9, 2026. The Court heard initial arguments and directed that the parties submit further hearing, in particular to address the impact of a referenced prior court ruling which the opposing party argued had disposed of the disqualification issue and/or should inform the Court's ruling on the pending motion. Further Opposition was to be filed by July 6, 2026 and any further Reply by July 20, 2026. The parties were admonished that the further briefing should be limited to five (5) pages.

Notwithstanding the continuance and the Court's direction, no further papers appear to have been filed by any party.

Background

Defendant Jacobsen contends that Mr. Steele received confidential information material to this dispute and his continued representation of plaintiffs creates an impermissible

conflict of interest.

Defendant Jacobsen asserts that Mr. Steele represented him in a federal case involving the Tice Valley Property that is the subject of this litigation and received information “about Mr. Jacobsen’s position, financial background, and litigation objectives concerning the Tice Valley Property and related trust disputes.” See Motion to Disqualify Counsel, p. 4 *et seq.*

Defendant Jacobsen filed a Request for Judicial Notice regarding certain portions of the California Rules of Professional Conduct (the “RJN”). The RJN is **GRANTED**.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” *Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145. “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” *Id.*

On June 1, 2026, a “Minute Order of April 1, 2026 Denying Motion to Disqualify Attorney Geoffrey Steele & Findings of Fact” was filed herein. The paper attaches a minute reflecting proceedings in Case No. MSD20-03656 before Judge Lee (Department 25).

The Minute Order makes reference to an apparent denial of “Respondent's Motion for Disqualification of Counsel for Attorney Paula Grohs and Attorney Geoffrey Steele.”

As noted previously, no opposition papers have been filed articulating the particulars regarding the relationship, if any, of this matter to MSD20-03656 and why or how any determination of the disqualification in such matter (the “Prior Ruling”) is determinative of the pending motion in this case. Despite giving the parties a further briefing opportunity, no further papers have been submitted addressing such matters further.

The Court cannot conclude on this record that the Prior Ruling disposes of the issue as raised in present motion.

In any event, the matter is now moot. On July 17, 2026, Plaintiffs filed a request for dismissal of Defendant Jacobsen, which was entered by the Court on that date. Given the dismissal of the moving party, the motion must be dropped from calendar.

Disposition

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is **DROPPED FROM CALENDAR** as moot.

12. 9:00 AM CASE NUMBER: C25-03200
CASE NAME: DEMANUEL GROSSE, SR. VS. THE PORTIA BELL HUME CENTER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: THE PORTIA BELL HUME CENTER
TENTATIVE RULING:

Defendant THE PORTIA BELL HUME CENTER filed a Demurrer on February 26, 2026 to the Complaint filed October 30, 2025 by plaintiff. The Demurrer was set for hearing on July 27, 2026. A First Amended Complaint was filed on May 18, 2026. When a plaintiff files an amended complaint in response to a demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 12.11. Defendant’s Demurrer is ordered OFF CALENDAR as moot.

13. 9:00 AM CASE NUMBER: C26-00053
CASE NAME: JONATHON HEPBURN VS. CONTRA COSTA FARMS, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CONTRA COSTA FARMS, LLC
TENTATIVE RULING:

Introduction

Defendant Contra Costa Farms, LLC (“Defendants”) filed a Motion to Compel Arbitration seeking an order compelling plaintiff Jonathan Hepburn (“Plaintiff”) to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Plaintiff’s employment with Defendant from approximately September 2023 through July 2024.

The Motion relates to Plaintiff’s Complaint for (1) Race Discrimination in Violation of the Fair Employment and Housing Act (“FEHA”); (2) Retaliation in Violation of the FEHA; (3) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; 4) Whistleblower Retaliation in Violation of Cal. Lab. Code § 1102.5; and (5) Wrongful Termination in Violation of Public Policy.

For the reasons articulated below, the Motion to Compel Arbitration is **DENIED**.

Relevant Facts

Plaintiff was employed with Defendant from September 1, 2023, until his termination on July 3, 2024. (Hepburn Decl. ¶12.)

Plaintiff generally states that he was employed by the entity Contra Costa Farms, LLC, not “CoCo Farms LLC” or “CCF.” (Hepburn Decl. ¶13.) The Court notes that the Severance Agreement defines Contra Costa Farms, LLC as “Employer” or “CCF” in the second line of the Severance and Release Agreement.